

Confidentiality of Documents Act, 1982

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 4

Confidentiality of Documents Act, 2039

Royal Seal and Date of Publication

2039.8.6

Amending Acts

1. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7

Act No. 18 of the year 2039

An Act Made to Provide for the Confidentiality of Documents

Preamble: Whereas, for the maintenance of security, peace, and order of Nepal, it is desirable to classify protected documents such as important papers, records, treaties of government and public offices and to make necessary provisions regarding the protection of confidentiality;

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the Rastriya Panchayat, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Confidentiality of Documents Act, 2039".

(2) This Act shall come into force on such date as the Government of Nepal may, by notification in the Nepal Gazette, appoint. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Office" means a government or public office, and the said term also refers to the office of any temporary or ad hoc commission or committee formed from time to time by the Government of Nepal, omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Explanation: For the purposes of this clause, "public office" means the office of a public institution specified by the Government of Nepal from time to time by a notification published in the Nepal Gazette.

(b) "Classified Document" means a document classified pursuant to Section 3.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act or in the order issued thereunder. 3. Classification of Documents: (1) For the purpose of confidentiality of documents, documents shall be classified as follows:-

- (a) Top Secret Document,
- (b) Very Secret Document,
- (c) Secret Document.

(2) The responsibility for determining the class in which any document of an office shall be placed for the confidentiality of documents shall lie with a committee chaired by the Chief Secretary and comprising the Secretaries of the relevant ministries. Provided that general decisions and orders made by the Government of Nepal shall not be included in classified documents.

(3) The bases for determining the class in which a document shall remain confidential shall be as prescribed.

(4) A document not classified pursuant to this section shall not be deemed confidential. 4. Marking of Class: After classifying documents pursuant to Section 3, each such document shall be stamped with a mark indicating the relevant class as prescribed. 5.

Top Secret Document: (1) A Top Secret document shall remain confidential for a period not exceeding thirty years at a time, and no person shall, without the permission of the Government of Nepal, bring to light, mention, or disclose, wholly or partially, such document or its contents, nor shall any person other than the concerned individual inspect it. (2) A Top Secret document shall be kept under mandatory seal, and the transfer or exchange of such document shall be carried out in a sealed manner. 6. Very Secret Document: (1) A Very Secret document shall remain confidential for a period not exceeding twenty years at a time, and thereafter, if the Government of Nepal so desires, for further periods not exceeding ten years each time, as necessary. Within that period, no person shall, without the permission of the Government of Nepal, bring to light, mention, or disclose, wholly or partially, such document or its contents, nor shall any person other than the concerned individual inspect it. (2) A Very Secret document shall be kept under mandatory seal or in a closed envelope, and the transfer or exchange of such document shall be carried out in a sealed or envelope-closed manner. 7. Secret Document: (1) A Secret document shall remain confidential for up to five years, and within that period, no person shall, without the permission of the Government of Nepal, bring to light, mention, or disclose, wholly or partially, such document or its contents, nor shall any person other than the concerned individual inspect it. (2) The transfer or exchange of a Secret document shall generally be carried out in an envelope-closed manner. 8. Reclassification of Document: The Government of Nepal may, as necessary, transfer classified documents from one class to another or place them in no class at all. 9. Not Admissible as Evidence: A classified document shall not be admissible as evidence in any court or legal proceeding until the expiry of the period determined pursuant to Section 5, 6, or 7. Provided that in a case under this Act, there shall be no bar to mentioning only the name and nature of such classified document. 10. Obligation to Disclose Source of Document: If any person publishes or mentions the whole or part of the contents of any classified document, such person shall be obliged to disclose the source of such contents to the officer conducting the proceedings, investigation, or inquiry of a case under this Act. 11.

Power of Search and Arrest: (1) If there is reasonable cause to believe that any person has committed an offense under this Act or that a classified document is in the unauthorized possession of such person, the Government of Nepal may issue a warrant to arrest such person, or to enter and search the house or land of such person at any time, or to search the person or property of such person, and to seize related property. (2) In a situation under sub-section (1), if there is a likelihood of the offender fleeing or the evidence of the offense being destroyed, the Government of Nepal may arrest such person even before the issuance of a warrant and may enter any house or land for that purpose at any time. If such offender is attempting to escape by a vehicle, the Government of Nepal may have such vehicle stopped or made to halt at any place. 12. Punishment: (1) If any person violates this Act, the person committing such violation, as well as any person aiding or abetting therein, shall, according to the gravity of the offense, be punished as follows:- (a) For violation of Section 5, imprisonment for a term of ten to fifteen years or a fine of up to fifty thousand rupees, or both, (b) For violation of Section 6, imprisonment for a term of five to ten years or a fine of up to twenty-five thousand rupees, or both, (c) For violation of Section 7, imprisonment for a term of one to five years or a fine of up to ten thousand rupees, or both, (d) For violation of other sections, a fine of up to five thousand rupees. (2) If any person convicted of an offense punishable under clause (a), (b), or (c) of sub-section (1) is an employee of a government or public institution and is found guilty in relation to a

document under their charge or in their office, such person shall be deemed to have been punished for an offense involving moral turpitude, and shall be automatically dismissed from service, becoming disqualified for future service in any post. 13. Jurisdiction and Procedure: (1) Omitted by the Judicial Administration Reform (Fourth Amendment) Act, 2043 (2) Omitted by the Judicial Administration Reform (Fourth Amendment) Act, 2043 (3) The case under this Act shall be deemed to be included in Schedule-1 of the transformed by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 and amended by the Some Nepal Acts Amendment Relating to the Muluki Criminal Procedure Code, 2075. Muluki Criminal Procedure Code, 2074. (4) Omitted by the Judicial Administration Reform (Fourth Amendment) Act, 2043 14.

No Bar to Action under Other Laws: If an offense under this Act is also punishable under any other law in force, nothing contained in this Act shall be deemed to bar action under such other law. 15. Additional Punishment and Jurisdiction: If any person commits any act which is an offense under this Act, and such act is also an offense under any other law in force, or if in connection with an offense under this Act, an offense under any other law in force is also committed, the court under Section 13 shall also try and dispose of the case relating to such offense, and the offender shall, in addition to the punishment under this Act, also be subject to the punishment provided under the other law in force. 16. No Action: If a person who has custody of a document classified under this Act shows such document to another person or otherwise discloses it, believing such other person to be an authorized person, such person shall not be liable to action under this Act. Provided that if such person knowingly shows or discloses a classified document to an unauthorized person, there shall be no bar to taking action against such person under this Act. 17. Delegation of Power: The Government of Nepal may, by notification in the Nepal Gazette, delegate the powers conferred upon it under Section 11 to any office or officer. 18. Power to Make Rules: The Government of Nepal may make rules for the purpose of implementing the objectives of this Act. 19. Saving: Any document of an office bearing a stamp indicating 'Very Secret', 'Secret', or any other similar nature prior to the commencement of this Act shall not be deemed a classified document for the purposes of this Act if it is not classified under this Act.